

25NNCV04476 25NNCV04476

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Case Number: 25NNCV04476 Hearing Date: June 26, 2026 Dept: B

Hon. Lee

S. Arian, Dept B

MOTIONS TO COMPEL FURTHER

Hearing Date: 6/26/26;

CASE NO./NAME: 25NNCV04476 BARBERIO
ENTERPRISES, INC. vs SCOTT SELWAY, et al.

Moving Party: Defendant

Michael Dean Duncan

Responding Party: Unopposed

Notice: Sufficient;

Ruling: GRANTED

Background

This action arises from allegations that Defendant Scott Selway breached his duty of loyalty to Plaintiff Barberio Enterprises, Inc. that was denoted in the collective bargaining agreement, employee handbook, and confidentiality agreement he signed at the commencement of his employment, including, but not limited to: (1) by misappropriating Plaintiff's trade secrets; (2) obtaining his C20 license while employed with Plaintiff; (3) forming Defendants Selway Mechanical HVAC, LLC and commencing employment with Infinite Circulation in

order to directly compete with Plaintiff; and (4) inducing, soliciting, stealing, and raiding key personnel, including Defendant Michael Dean Duncan ("Duncan"). Plaintiff brings nine causes of action: (1) breach of fiduciary duty; (2) breach of duty of loyalty; (3) breach of contract (confidentiality agreement); (4) breach of implied covenant of good faith and fair dealing; (5) misappropriation of trade secrets; (6) tortious interference with prospective economic relations; (7) unfair competition; (8) conversion; and (9) injunctive relief.

Motions to Compel Further Responses

The instant motions concern Plaintiff's responses to Form Interrogatories, Set One (Nos. 8.4, 8.7, 8.8, & 12.1) and Requests for Production, Set One (Nos. 1-2 & 4-54). Plaintiff asserted boilerplate responses to all of Duncan's discovery and did not provide any substantive responses. The parties met and conferred multiple times, during which Duncan provided Plaintiff extensions to provide supplemental responses, and Plaintiff agreed to do so. Plaintiff's counsel also argued about the necessity of an AEO-level protective order. However, Plaintiff did not provide any supplemental responses. Duncan now moves to compel further responses. Plaintiff did not file an opposition.

As to Form Interrogatory No. 8.4, which asks for Plaintiff's monthly income at the time of the incident and how the amount was calculated, Plaintiff responded as follows: "Barberio Enterprises, Inc. dba Westco Service Company is a privately held corporation. The company does not calculate "monthly income" in the manner suggested by this interrogatory, and its revenue and expense reports vary from month to month and year to year. To the extent income or revenue is at issue in this case, Responding Party will produce relevant and responsive documents at the appropriate time and subject to a mutually agreeable protective order. Discovery and investigation are continuing, and Westco reserves the right to amend this response."

As to Form Interrogatory No. 8.7, which asks for the total income Plaintiff has lost to date as a result of the incident and how the amount was calculated, Plaintiff responded as follows: "Responding Party contends that it has lost business opportunities and income as a result of Defendant's conduct, including the misappropriation of proprietary information and solicitation of a key client. While the precise amount is still being calculated, Responding Party estimates that the loss of business related to The Culver Studios

contract alone represents a substantial ongoing monthly loss in revenue.

Additional losses will be supported by financial records, profit-and-loss statements, and customer account history, which will be produced at the appropriate time subject to a mutually acceptable protective order. Discovery and investigation are continuing, and Westco reserves the right to amend this response." Plaintiff also objected to the interrogatory as premature.

As to Form Interrogatory No. 8.8., which asks whether Plaintiff will lose income in the future as a result of the incident and for further information like relevant fact, estimated amount, and calculation method, Plaintiff responded as follows: "Yes. (a) Responding Party anticipates future loss of income as a result of Defendants' wrongful conduct, including but not limited to the misappropriation of trade secrets, breach of contractual and fiduciary duties, and wrongful solicitation of a key client. (b) Responding Party is continuing to assess the full scope of damages, but anticipates ongoing monthly loss of income that may exceed several hundred thousand dollars annually. (c) Responding Party is unable to determine with certainty how long the income loss will continue, but believes that unless remedial relief is granted, such losses will continue indefinitely or until the account is restored or comparable revenue is replaced. (d) The claim for future lost income will be calculated based on historical earnings from the client account at issue, projected growth, overhead, and profit margin data, and will be supported through financial records, expert analysis, and documentation of client loss. Discovery and investigation are continuing, and Westco reserves the right to amend this response."

As to Form Interrogatory No. 12.1, which seeks personal identifying information regarding individuals who witnessed the incident or events occurring immediately before or after the incident, who made any statements at the scene or heard any statements made about the incident by others at the scene, and who claims to have knowledge about the incident, Plaintiff responded with 5 names, two of whom are named Defendants. Plaintiff's response did not specify which subcategory of the interrogatory the names are associated with.

As to the Requests for Production Nos. 1-4, 6-8, 10-11, 14-15, & 19-20, Plaintiff responded as follows: "Responding Party will produce non-privileged, responsive documents within its possession, custody, or control that can be located following a reasonable search. Discovery and investigation are ongoing, and Responding Party reserves the right to supplement or amend this response as additional information becomes available." For the rest,

Plaintiff responded: "Subject to and without waiving the foregoing objections, Responding Party responds as follows: Responding Party will produce non-privileged, responsive documents within its possession, custody, or control that can be located following a reasonable search. Additionally, Responding Party states that responsive documents may exist that are currently in the possession of third parties or other parties to this litigation. These documents have been or will be requested through the discovery process and will be produced upon receipt to the extent they are [non-privileged], non-confidential, and responsive. Discovery and investigation are ongoing, and Responding Party reserves the right to supplement or amend this response as additional information becomes available."

A majority of Plaintiff's responses contain a set of boilerplate objections and claims of privilege and a right to privacy. Such objections are improper in that they lack any specificity. Under California law, objections must be specific, "boilerplate" objections and "nuisance objections" are inappropriate and even sanctionable. (*Korea Data Systems Co., Ltd. v. Superior Court*, (1997) 51 Cal.App.4th 1513, 1516; *Standon Co., Inc. v. Superior Court*, (1990) 225 Cal.App.3d 898, 902-903.) Plaintiff also bears the burden of justifying its objections in response to a motion to compel. (*Fairmont Ins. Co. v. Superior Court*, (2000) 22 Cal.4th 245, 355.)

Plaintiff fails to explain what sought information implicates Plaintiff's privacy rights, prematurely seeks expert witness information, or infringes upon the attorney-client privilege and the attorney work product doctrine. Specifically, as to the RFAs, Plaintiff has not provided sufficient factual information for other parties to evaluate the merits of Plaintiff's privilege claims as required by Code of Civil Procedure section 2031.240. (Code Civ. Proc. § 2031.240, subd. (c)(1) ["If an objection is based on a claim of privilege or a claim that the information sought is protected work product, the response shall provide sufficient factual information for other parties to evaluate the merits of that claim, including, if necessary, a privilege log."].)

Plaintiff also responded to Form Interrogatory No. 8.4 that the company does not calculate "monthly income" as suggested, but paradoxically responded to No. 8.8(b) that it "anticipates ongoing monthly loss of income that may exceed several hundred thousand dollars annually."

Plaintiff produced boilerplate objections and promised to provide supplemental responses but failed to do so. Plaintiff also did not file an opposition and has failed to provide any justification for any of its objections. Accordingly, the motions are granted. Plaintiff is ordered to provide code-compliant responses, with verification, and without objection (although Plaintiff may assert attorney-client privilege and/or attorney work product to the extent appropriate) within 20 days of today.

Duncan moves for sanctions against Plaintiff and its attorney of record in the sum of \$13,750.00 for both motions. For the motion to compel further responses to RPDs, Duncan requests \$9,900.00 in sanctions: 12 hours of attorney work for preparing the motion and supporting papers and 6 hours for reviewing the opposition and preparing a reply. For the motion to compel further responses to FROGs, Duncan requests \$3,850.00 in sanctions: 5 hours for preparing the motion and supporting papers and 2 hours for reviewing the opposition and preparing a reply. Counsel bills at a rate of \$550/hour as an attorney with more than a decade of experience.

First, the Court reduces the request by 8 hours because no opposition was filed. Second, the Court finds 17 hours of attorney work to prepare two discovery motions to be excessive. The Court reduces the total hours to 10, 5 hours per motion. Accordingly, sanctions in the amount of \$5,500 are ordered against Plaintiff and its attorney of record, jointly and severally, payable within 20 days of today.

Parties

who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative as directed by the instructions provided on the court's website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.

Hon. Lee S. Arian

Judge of the Superior Court